

TENTATIVE RULINGS
Judge Lindsey E. Martínez, Dept. C24

“Civility is not about etiquette. This is not a matter of bad manners. Incivility slows things down, it costs people money – money they were counting on their lawyers to help them save. And it contravenes the Legislature’s directive that ‘all parties shall cooperate in bringing the action to trial[.]’ (Code Civ. Proc., § 583.130.)” (*Masimo Corp. v. The Vanderpool Law Firm, Inc.* (2024) 101 Cal. App. 5th 902, 911; *see generally* OCBA Civility Guidelines.)

- The court encourages remote appearances to save time and reduce costs.
- All hearings are open to the public.
- You must provide your own court reporter and interpreter, if required.
- Call the other side and ask if they will submit to the tentative ruling. If everyone submits, call the clerk. The tentative ruling will become the order. If anyone does not submit, there is no need to call the clerk.
- The court will hold a hearing. The court may rule differently at the hearing. (*See Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Hearing Date: June 29, 2026 at 1:30 pm
Rulings Posted: 6/29/26 11am

#	Case Name	Tentative
301	<i>Vincent vs. Pourtemour</i>	Before the court are three matters. The first is an Order to Show Cause re Dismissal of the First Amended Complaint. The second is a motion by the plaintiffs for summary judgment or alternatively summary adjudication as to their First Amended Complaint. The third is a motion by cross-defendants for summary judgment or alternatively for summary adjudication as to the Cross-Complaint filed by Ryan Pourtemour Having considered the briefs and evidence submitted by the parties, the court now rules as follows:

Order to Show Cause re Dismissal

On calendar today is a hearing on an order to show cause regarding dismissal of the First Amended Complaint for failure to bring the case to trial within the time limit of Code of Civil Procedure §583.310.

The court finds that the five-year period within which to bring a case to trial under Section 583.310 ran on June 24, 2026. (See May 26, 2026 Minute Order) “An action shall be brought to trial within five years after the action is commenced against the defendant.” (Code of Civil Procedure §583.310) “An action shall be dismissed by the court on its own motion or on motion of the defendant, after notice to the parties, if the action is not brought to trial within the time prescribed in this article.” (Code of Civil Procedure §583.360)

Accordingly, because the Plaintiffs have failed to bring the case to trial within five years, the First Amended Complaint is DISMISSED.

Motion for Summary Judgment on First Amended Complaint

In light of the ruling on the OSC re Dismissal, the motion by Plaintiffs Joseph Vincent, Vinco.IO LLC and Vincent Investing Consulting Corp, dba Xcel Services Group for summary judgment, or alternatively for summary adjudication, as to their First Amended Complaint (FAC) is MOOT.

Motion for Summary Judgment on Cross Complaint

Cross-defendants Joseph Vincent, Vinco.IO LLC and Vincent Investing Consulting Corp, dba Xcel Services Group (collectively, cross-defendants) motion for summary judgment, or alternatively for

	summary adjudication as to the cross-complaint filed by Ryan Pourtemour, is GRANTED in part and DENIED in part, as set forth herein. The Court notes initially that Pourtemour mistakenly asserts the motion is not timely. Although the motion is being heard one week before trial, the court has previously made a finding of good cause to have the motion heard within 30 days of trial. (See 4/20/26 Minute Order) In the notice of motion, cross-defendants state they are seeking “summary judgment or, in the alternative, for summary adjudication” on the grounds “the record is devoid of facts supporting these causes of action.” However, Rule 3.1350(b) states: “If made in the alternative, a motion for summary adjudication may make reference to and depend on the same evidence submitted in support of the summary judgment motion. If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty <u>must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts.</u>” Here, the separate statement identifies four issues. Issue No. 1 asserts judgment is appropriate because Pourtemour cannot “establish the essential elements of his causes of action.” The separate statement does not include any reference to specific causes of action. The court considers Issue No. 1 to be a request for summary judgment. Because there is no separate statement addressing any specific causes of action, the court exercises its discretion and DENIES the motion for summary adjudication as to each cause of action.
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Additionally, Issue Nos. 2-4 seek summary adjudication as to the issue of damages and the affirmative defenses of Laches and Unclean Hands. However, neither damages nor any affirmative defenses are mentioned in the notice of motion. Because Issue Nos. 2-4 were not included in the notice of motion, the motion as to these issues is **DENIED**.

Joseph Vincent

As to the motion by Joseph Vincent (Vincent), the court finds Vincent has failed to meet his burden to establish there is no triable issue of material fact as to the 3rd cause of action for Breach of Contract.

“[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Unlike federal law, California law requires that “a defendant moving for summary judgment . . . present evidence, and not simply point out that the plaintiff does not possess, and cannot reasonably obtain, needed evidence.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 855.)

Here, Vincent argues “Pourtemour cannot identify any actual economic loss attributable to Texo’s dissolution (UMF No. 50), and thus he is unable to prove an essential element of his third and fourth causes of action.” (MSJ at 17:11-13) In UMF No. 50, Vincent asserts there is “no evidence that Pourtemour suffered economic loss attributable to Texo’s dissolution.” However, based on the court’s review of the evidence at UMF No. 50, it has not been established that “no evidence” of damages exists.

Because Vincent has not met his burden as the moving party, he is not entitled to judgment as a matter of law with regard to the 3rd cause of action for Breach of Contract. If any one cause of action survives Vincent's challenge, the entire motion must be denied even if some of the causes of action would have been subject to summary adjudication if properly requested. (*Homestead Sav. v. Superior Court* (1986) 179 Cal.App.3d 494, 498.) Accordingly, the motion for summary judgment by Vincent is **DENIED**.

Vincent Investing Consulting Corp, dba Xcel Services Group

As to the motion by Vincent Investing Consulting Corp, dba Xcel Services Group (Xcel), only the 1st and 2nd causes of action are asserted against Xcel.

In the 1st cause of action, Pourtemour asserts a claim for Intentional Interference with Contractual Relations and in the 2nd cause of action, Pourtemour asserts a claim for Intentional Interference with Prospective Economic Relations.

Both of these causes of action require a plaintiff to establish the existence of a relationship with a third party that was disrupted. (See, *Ixchel Pharma, LLC v. Biogen* (2020) 9 Cal. 5th 1130, 1141 – elements for Intentional Interference with Contractual Relations; See also, *Crown Imports, LLC v. Superior Court* (2014) 223 Cal.App.4th 1395, 1404 – elements for intentional Interference with Prospective Economic Relations)

Xcel argues these two causes of action fail because Pourtemour lacks any evidence of a relationship with a third party which was disrupted. At UMF 43, Xcel submits evidence that it requested that Pourtemour describe the economic relationship it had that was interrupted or interfered with. He

responded that he was not able to answer that question. (See Bustillos Decl. ¶ 12, Exhibit 10, Special Interrogatories 9-11) Pourtemour's factually devoid discovery responses can be used to shift the burden of proof on summary judgment. (*Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 580-581) The court finds that Xcel has met its burden as moving party.

Once Xcel meets its initial burden, the burden shifts to the plaintiff to establish, by means of competent and admissible evidence that a triable issue of material fact still remains. (Code Civ. Proc., § 437c (p)(2); *Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 850–851.) Code of Civil Procedure §437c(b)(3) provides: "The opposition papers shall include a separate statement that responds to each of the material facts contended by the moving party to be undisputed, indicating if the opposing party agrees or disagrees that those facts are undisputed. The statement also shall set forth plainly and concisely any other material facts the opposing party contends are disputed. Each material fact contended by the opposing party to be disputed shall be followed by a reference to the supporting evidence. Failure to comply with this requirement of a separate statement may constitute a sufficient ground, in the court's discretion, for granting the motion."

Here, Pourtemour has failed to submit a separate statement in the form required by Rule 3.1350(h). Further, Pourtemour's declaration (ROA 1274) fails to identify the economic relationship, contract or agreement he had with a third party that was disrupted. Accordingly, Pourtemour has failed to meet his burden to establish a question of fact exists on this issue.

Therefore, the motion by Xcel for summary judgment is GRANTED.

Vinco.IO LLC

As to the motion by Vinco.IO LLC (Vinco), the court finds Vinco has failed to meet its burden to establish there is no triable issue of material fact as to the 8th cause of action for Unfair Competition.

In the 8th cause of action, Pourtemour asserts a claim for Unfair Competition. “An unfair business practice occurs when that practice offends an established public policy or when the practice is immoral, unethical, oppressive, unscrupulous or substantially injurious to consumers. . . . An unfair business practice also means the public policy which is a predicate to the action must be tethered to specific constitutional, statutory or regulatory provisions.” (*Lueras v. BAC Home Loans Servicing, LP* (2013) 221 Cal.App.4th 49, 81 [internal citations omitted].)

Vinco argues “Pourtemour’s attempt to establish fraudulent conduct is premised entirely upon his demonstrably false allegation that Vincent ‘misrepresented to Texo’s customers that Texo was rebranding under [Vinco] in order to transfer their business.’ ” (Motion at 14:8-11) Vinco cites to UMF 42 for the proposition that rebranding was necessitated by the defendants’ conduct. The court does not find the evidence at UMF 42 supports this conclusion. Also, this argument does not address Pourtemour’s allegation that there was a “scheme” to interfere with contractual business relations and “draw customers away from Ryan Pourtemour.” (See cross-complaint at ¶¶95, 97)

Based on the foregoing, the court finds Vinco has failed to meet its burden as the moving party. Accordingly, the motion for summary judgment by Vinco is DENIED.

		Mr. Pourtemour is ordered to give notice of this ruling.
302	<i>Martin vs. In-N-Out Burgers</i>	
303	<i>Javier vs. Kia America, Inc.</i>	Plaintiff Mirna Martinez Javier's motion for attorney fees and costs is GRANTED in the reduced amount of \$26,965 in fees and \$1,141.15 in costs, for a total amount of \$28,106.15. (Civ. Code § 1794, subd. (d).) The Court reduces the hourly rates of Perdue, Greco and Urner to \$450, but otherwise approves all other hourly rates. These attorneys may have many years of experience, but the nature of work performed, including reviewing documents, drafting routine discovery and preparing routine motions, are more suitable for a junior level attorney. The Court reduces time spent by Perdue by 4.0 hours and Kowalczyk by 0.5 hours, which the Court finds excessive; all other time spent is approved. (See <i>Warren v. Kia Motors America, Inc.</i> (2018) 30 Cal.App.5th 24, 36 [standard for determining reasonableness of fees].) Plaintiff shall give notice.
304	<i>Anderson vs. TMT Industries, Inc</i>	
307	<i>Cervantes De Cabrera vs. United Exchange Corp.</i>	

308	<i>Rodriguez vs. Parker</i>	CMC
309	<i>Craik vs. Placentia-Yorba Linda Unified School District</i>	CMC
311	<i>Pendergist vs. Ramirez</i>	CMC
312	<i>Christiansen vs. Arellano</i>	CMC
313	<i>Van Der Hoeven vs. Qazi Cosmetic Clinic</i>	
314	<i>Spears vs. The Horizons Community Association</i>	
315	<i>Nguyen vs. Carrington Mortgage Services, LLC</i>	Defendant Carrington Mortgage Services, LLC's motion to compel arbitration is GRANTED. (See 9 U.S.C. § 2, Code of Civ. Proc. § 1281.2.) Plaintiff Mary Nguyen shall submit her claims against Defendant to binding arbitration pursuant to their agreement. This action is stayed pending completion of arbitration. (See 9 U.S.C. § 3; Code of Civ. Proc. § 1281.4.) Defendant's evidentiary objections to the declarations of Mary Nguyen and Richard Domnanovits are SUSTAINED in their entirety, based on relevance. The Federal Arbitration Act governs the arbitration agreement at issue. (See 9 U.S.C. § 2; <i>Victrola 89, LLC v. Jaman Properties 8 LLC</i> (2020) 46 Cal.App.5th 337, 355 [the FAA applies if it is so stated in the agreement]; see also Declaration of Deanne Johnson ("Johnson Decl."), Ex. A at ¶ 14.) When deciding whether a valid arbitration

		agreement exists under the FAA, courts generally apply “ordinary state-law principles that govern the formation of contracts.” (<i>First Options of Chicago, Inc. v. Kaplan</i> (1995) 514 U.S. 938, 944.) Defendant met its burden to show a written arbitration agreement exists between the parties. (See <i>Rosenthal v. Great Western Fin. Securities Corp.</i> (1996) 14 Cal.4th 394, 413 [burden]; Johnson Decl., Ex. A; see also declaration of Marnetta Griffin ¶¶ 4-6, Ex. B.) Plaintiff failed to meet her shifted burden the arbitration agreement is unenforceable, including showing the agreement is both procedurally and substantively unconscionable. (<i>Serafin v. Balco Properties, Ltd., LLC</i> (2015) 235 Cal.App.4th 165, 178 [unconscionability standard].) Plaintiff’s request for limited discovery regarding arbitrability issues is DENIED. Defendant shall give notice.
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